

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KARIFF SHEPPARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. VINCENT
GAMBINO 75TH Pct., DET. JULIO MICHELI
75TH Pct., P.O. JOHN DOE 1, P.O. JOHN DOE 2
and P.O. JOHN DOE 3.

Defendants.

Index No.

Date Purchased:

SUMMONSPlaintiff designates **KINGS COUNTY** as the place
for trial. The basis of venue is plaintiff's residence.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 16, 2022


Robert Rambadadt, Esq.

THE RAMBADADT LAW OFFICE

Attorneys for Plaintiff

THE RAMBADADT LAW OFFICE

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Defendant's address:

City of New York
100 Church Street
New York, New York 10007

P.O. Vincent Gambino
75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

Det. Julio Micheli
75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

P.O. John Doe 1
75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

P.O. John Doe 2
75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

P.O. John Doe 3
75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff, complaining of defendant, by her attorneys, THE RAMBADADT LAW
OFFICE, respectfully alleges as follows upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, City and State of New York.

2. This is a civil rights action in which Plaintiff, KARIFF SHEPPARD seeks
damages for personal injuries sustained as a result of the defendants' violation of her rights
as secured by 42 U.S.C. §§1983, 1985 and 1986, and by the Fourth Amendment and the
Equal Protection and Due Process Clauses of the Fourteenth Amendment of the United
States Constitution, and for rights secured under the laws and Constitution of the State of
New York. Plaintiff also sues in traditional tort pursuant to New York State claims.
Plaintiff was deprived of her constitutional and common law rights when the individual
defendants unlawfully entered her home, removed items and confined the person of

THE RAMBADADT LAW OFFICE

plaintiff. Plaintiff seeks damages, compensatory and punitive, affirmative and equitable relief, and award of costs and attorney's fees and such other and further relief as this Court deems equitable and just.

3. Upon information and belief, at all times hereinafter mentioned, plaintiff, KARIFF SHEPPARD (hereinafter referred to as "KARIFF") is a United States citizen and resident of Kings County, New York.

4. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, ("CITY"), was and is a municipal corporation duly organized and existing under the laws of the State of New York.

5. At all times hereinafter mentioned, Defendant CITY is a municipal entity authorized under the laws of the State of New York to operate and maintain the NEW YORK CITY POLICE DEPARTMENT ("NYPD"), inter alia, which acts as its agents in the area of law enforcement, custodial care and management of criminal offenders, and for whose actions, and the actions of individual police officers employed thereby, defendant CITY was and is ultimately responsible.

6. At all times hereinafter mentioned, Defendant CITY operated, maintained and controlled the NYPD, including all police officers therein and assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the consumers of the services provided by the NYPD.

7. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. VINCENT GAMBINO¹, (hereinafter "GAMBINO"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of plaintiff KARIFF.

¹ For the purposes of this Complaint the defendants Vincent Gambino and Julio Micheli's names will be represented as such and Plaintiff reserve the right to amend the caption and subsequent instances with alternate spelling of the names.

Defendant GAMBINO is sued both in his individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

8. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE 1, (hereinafter "DOE 1"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of plaintiff KARIFF. Defendant DOE 1 is sued both in his individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

9. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE 2, (hereinafter "DOE 2"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of plaintiff KARIFF. Defendant DOE 2 is sued both in his individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

10. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE 3, (hereinafter "DOE 3"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of plaintiff KARIFF. Defendant DOE 3 is sued both in his individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

11. At all times relevant herein, each and every individual defendant herein was acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City of New York and, where relevant, the State of New York, at all times relevant herein with the power and authority vested in them as officers, agents and

employees of the City of New York and State of New York, and incidental to the lawful pursuit of their duties as officers, employees and agents of the City and State of New York.

STATEMENT OF FACTS

12. Plaintiff KARIFF was on parole after completing a 17 year sentence on a felony conviction in Kings County Supreme Criminal Court.

13. After performing exemplary during the past five (5) years, his parole was scheduled to finish at the end of March 2021.

14. On March 18, 2021 plaintiff KARIFF went to an apartment to visit a friend where there was a get together to watch an National Basketball Association (NBA) game.

15. After arriving he entered the living room, took of his coat and left it on the couch and sat down to watch and remain there watching the game.

16. Approximately 35 minutes after arriving the police entered the apartment with weapons drawn and ordered everyone to remain still and lay down on the floor.

17. There was no resistance and everyone complied with the police officers' commands, including plaintiff KARIFF.

18. A gun was located in a closet in a back room and all of the individuals in the apartment were placed under arrest. An officer asked to whom does the coat on the couch belong and plaintiff KARIFF stated it was his coat. The officer placed the coat on his shoulders but did not remove the cuffs. Everyone was transported to the 75th precinct.

19. Once at the 75th precinct plaintiff KARIFF was being processed by defendants GAMBINO, MICHELI, DOE 1, DOE 2 and DOE 3 when it was learned that he was on

parole. While still wearing the coat on his shoulders defendants continued to process him and removed items from his pockets: cash, wallet, keys, and then placed him in a cell.

20. Plaintiff KARIFF was interviewed and informed that a gun was found in the apartment. He was asked to provide a DNA sample and did not consent to provide a DNA sample. The officers told him that 'he was a convicted felon and that he was going to jail'.

21. Approximately ten (hours) later he was transported to Kings County Central Booking and arraigned.

22. At his arraignment plaintiff KARIFF was charged with Criminal Possession of a Weapon in the 2nd degree; Criminal Possession of a Weapon in the 3rd degree; Criminal Possession of a Firearm; Criminal Possession of a Weapon in the 4th degree; Trespass; and Unlawful Possession of Marijuana.

23. Plaintiff KARIFF entered a plea of 'not guilty' and it was recommended that he be released on his own recognizance (the same recommendation that was given to all of the arrested persons from the NBA party), however, plaintiff KARIFF was detained and not released as it was learned there was a parole warrant issued for him.

24. Once back in holding, plaintiff KARIFF called his parole officer and learned that the hold on him was for possession of 30 ecstasy pills and crack cocaine.

25. This was a shock to plaintiff KARIFF as there were no charges in the criminal complaint regarding possession of an illegal substance, a search was conducted of his person and no narcotics were found and he had no knowledge of any such narcotics.

26. It was later learned that defendants GAMBINO and MICHELI reported to plaintiff KARIFF's parole officer that they found 30 ecstasy pills and crack cocaine in the pocket of his coat. However, defendants did not inform the District Attorney's office.

27. After several weeks a parole hearing was held and defendants GAMBINO and MICHELI testified that they recovered 30 ecstasy pills and crack cocaine from plaintiff KARIFF's coat pocket. However, defendants never produced the physical evidence at the hearing.

28. Defendants' vouchered items and claimed that it was 30 ecstasy pills and crack cocaine, however, these vouchered items were never sent to the Office of the Chief Medical Examiner (OCME) for testing to verify what substance they were.

29. On or about June 21, 2021, after four (4) months of being incarcerated, plaintiff KARIFF entered a plea in the parole proceeding to an added technical charge and accepted a Revoke and Restore on the parole matter. As a result, he was released from custody as he was incarnated strictly on the parole matter.

30. On or about August 19, 2021, all criminal charges against plaintiff KARIFF were dismissed.

31. As a direct and proximate result of the breach of constitutional rights, state law and procedure by defendants, plaintiff suffered: conscious pain and suffering; suffered mental anguish; and has sustained other damages and that all of the injuries and damages sustained by plaintiff are the direct and proximate result of the willful violations of plaintiff's constitutional rights and state procedural laws by all of the defendants without any act or omission on the part of the plaintiffs directly thereunto contributing.

FIRST CLAIM

32. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-31 above.

33. At all times relevant herein, the conduct of all defendants was subject to 42 U.S.C. §§1983, 1985, 1986, and 1988.

34. The conduct of each of the defendants GAMBINO, MICHELI, DOE 1, DOE2 and DOE 3, on or about March 18, 2021 and all subsequent dates, acting under color of state law, jointly and severally, in conjunction with each other to cause, in failing to prevent others from causing, and in unlawfully causing plaintiff to be incarcerated on false pretenses or probable cause, in causing plaintiff to suffer physical and emotional distress, and in depriving him of his Fourteenth Amendment due process rights, were undertaken with deliberate indifference, intentionally, maliciously and/or with reckless disregard for the natural and probable cause of their acts without lawful justification, and was designed to and did cause specific and serious physical and emotional harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §§1983 and 1985 and the Fourteenth Amendment.

35. Defendants did falsely and deliberately claim that plaintiff did possess an illegal substance and cause him to be incarcerated for four (4) as result of their false statements thereby violating the civil rights of the residents of that home.

36. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

SECOND CLAIM

37. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-36 above.

38. As a result of their concerted unlawful and malicious acts of all Defendants, Plaintiff was deprived of his right to equal protection of the laws, and the due course of justice was impeded,

in violation of the Fourteenth Amendment of the Constitution of the United States and 42 U.S.C. §§ 1983, 1985(3) and 1986.

39. That defendants GAMBINO, MICHELI, DOE 1, DOE2 and DOE 3 did knowingly agree in conjunction with each other to falsify information against plaintiff without cause or justification in violation of federal and state constitutional rights and in violation of due process and procedure under the laws of the state and city of New York, which resulted in injuries to plaintiff.

40. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

THIRD CLAIM

41. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-40 above.

42. Defendants GAMBINO, MICHELI, DOE 1, DOE2 and DOE 3 **knowingly, purposely and with malice aforethought** through a concerted effort actively organized and guided the decision to falsely accuse plaintiff of a criminal act to violate his parole in violation of his sixth amendment rights.

43. Through a recognized and established practice of unscrupulously violating procedure and due process defendants without just cause to secure a warrant, that is, the state of the facts in the mind of Defendants that would not lead a man of ordinary caution and prudence to believe, or entertain an honest or strong suspicion that a criminal act had occurred did violate plaintiff's constitutional rights.

FOURTH CLAIM

44. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-43 above

45. On information and belief, defendant CITY failed to effectively screen, hire, train, supervise and discipline its employees, servants, agents and assigns, including the named defendants herein, for their lack of truthfulness and failure to protect citizens from unconstitutional conduct of other state actors, thereby permitting and allowing the defendants herein to be in a position to fail to protect plaintiffs and to deny their rights as such guaranteed under the Federal and State constitutions.

46. On information and belief, the Defendant CITY failed to put into place and otherwise maintain an adequate structure for management relative to NYPD officers and employees and other servants, agents, officers, and employees. The structure was deficient, inter alia, at the time of evaluation and exchange within the command structure about the performance of individual NYPD officers employees; to the training of supervisory personnel to effectively and adequately evaluate performance of the NYPD officers employees; and to otherwise put the command structure on notice that an individual or individuals were at a significant level of risk to the public at large or to specific segments thereof. The net effect of this was to permit NYPD officers employees of the City and State of New York to function at levels of significant risk to the public.

47. On information and belief, the defendants GAMBINO, MICHELI, DOE 1, DOE2 and DOE 3, have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendant CITY on notice that the said defendants were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as conduct complained of by the Plaintiff herein

48. As a result of a conscious policy, practice, custom or usage, defendants have permitted, allowed and given tacit approval for the employment and retention of individuals whose individual behavior and circumstances place the public or certain segments thereof at substantial risk of being victims of civil rights violations and the lack of veracity demonstrated by the defendants herein

49. Such policy, practice, custom or usage was a direct and proximate cause of the conduct alleged herein and otherwise did directly and proximately cause the plaintiff to have suffered physical pain, mental anguish and emotional pain and suffering

WHEREFORE, as a result of the foregoing, plaintiff, demands against the defendant(s) damages in excess of the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendant(s) herein with and amount to be determined at trial.



Robert Rambadadt, Esq.

THE RAMBADADT LAW OFFICE

Attorneys for Plaintiff

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THE RAMBADADT LAW OFFICE

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)ss.:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am an associate of the law firm of THE RAMBADADT LAW OFFICE, attorneys of record for the plaintiffs in the within action; I have read the foregoing;

VERIFIED COMPLAINT

and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: entire file maintained in your deponent's offices; investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
June 16, 2022



ROBERT RAMBADADT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KARIFF SHEPPARD,

Plaintiff,

-against-

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MICHELI 75TH Pct., P.O. JOHN DOE 1, P.O. JOHN DOE 2 and P.O. JOHN DOE 3.

Defendants.

SUMMONS and VERIFIED COMPLAINT

THE RAMBADADT LAW OFFICE

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New York, New York 10011
(646) 450-8049

TO:

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 06/16/2022

Signature: 

Print Signer's Name: Robert Rambadadt

THE RAMBADADT LAW OFFICE